From: Cheryl Pienaar
To: Nikki Ostermann
Subject: FW: SUB60315119-A: 53B Remiger Road, Puhoi
Date: Wednesday, 16 April 2025 10:33:00 am

Good morning Nikki,

In response to your s224 application for Stage 2, please see Ken's comments regarding Condition 5 (fencing).

As a result, I will be forwarding this to NZ Biosecurity Services for signoff.

Kind regards

Cheryl

Cheryl Pienaar | Resource Consents Administrator

Auckland Council | Planning & Resource Consents
Ph 09 427 3149| Extn (44) 3149 Auckland Council,
Auckland Council, 6-8 Munroe Lane, Albany
Visit our website: www.aucklandcouncil.govt.nz

Please note my working week is Wednesday, Thursday & Friday

From: Ken Berger <ken.berger@aucklandcouncil.govt.nz>
Sent: Monday, 14 April 2025 3:47 pm
To: Cheryl Pienaar <Cheryl.Pienaar@aucklandcouncil.govt.nz>
Subject: RE: SUB60315119-A: 53B Remiger Road, Puhoi

Hi Cheryl,

Stage 2 creates Lot 3 based on having covenanted the bush areas shown as areas CS & CT which are over the balance lot, which is Lot 6.

Therefore

1. the **Fencing of bush and riparian areas** (conditions 5a & 5b of the consent) are applicable to Stage 2. Which I expect will need to referred to NZ Biosecurity Services for signoff.
2. **Ecology** (conditions 5c & 5d of the consent) are not applicable for Stage 2.
3. **Landscaping** (condition 5e of the consent) is not applicable for Stage 2.

Further to your query, please advise the applicant of the following.

As there are land covenants created over the adjoining 'Allot 32 Puhoi Psh RT NA2100/21 Ltd which are expected to be subject to consent notices, Council provide the following reference advice, provided recently on a similar Cato Bolam (Rebecca Sinclair) site.

- Council believe that as the consent stands, LINZ may have difficulty to process the consent notices on a lot created outside of the subject LT plan.
- In order to rectify the situation, Council don't see that including Allot 32 Puhoi Psh as a new lot on the LT plan as being in general accordance with the subdivision consent and therefore suggests that a s127 application is made to either,
    - Include the area as a lot on your plan, that will subject to the required covenant areas and therefore subsequently will be included in a consent notice to ensure ongoing enforcement of the consent, or
    - Have the consent amended to require that the areas subject to proposed covenants are changed from being subjected to a consent notice to being covered by a land covenant, so as to ensure the required ongoing protection is created.

I trust that assists.

Ngā mihi | Kind regards

Ken Berger | Senior Subdivision Advisor
Planning & Resource Consents
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From: Cheryl Pienaar <Cheryl.Pienaar@aucklandcouncil.govt.nz>
Sent: Thursday, 10 April 2025 9:41 am
To: Ken Berger <ken.berger@aucklandcouncil.govt.nz>
Subject: SUB60315119-A: 53B Remiger Road, Puhoi

Hi Ken,

We have received the s224c for Stage 2 (Lots 3 & 6) of this subdivision and in her cover letter, Nikki advises that the following conditions are not applicable to this stage: -

- **Fencing of bush and riparian areas**
  Not applicable for Stage 2
- **Ecology**
  Not applicable for Stage 2
- **Landscaping**
  Not applicable for Stage 2

I have attached a copy of the draft Consent Notice which appears to have some conditions which relate to the above conditions for Lot 6.

Please advise whether in this case Lot 6 is the balance lot (if so I will have to change the consent notice) or do I need to refer the signoff to NZ Biosecurity Services for signoff of the

ecology conditions.

Kind regards

Cheryl

Cheryl Pienaar | Resource Consents Administrator

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